

IECEx PUBLICATION

**IEC System for Certification to Standards Relating to Equipment for Use
in Explosive Atmospheres (IECEx System)**

Basic Rules

Withdrawn



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IECEX 01

Edition 7.0 2015-11

IECEX PUBLICATION

**IEC System for Certification to Standards Relating to Equipment for Use
in Explosive Atmospheres (IECEX System)**

Basic Rules

INTERNATIONAL
ELECTROTECHNICAL
COMMISSION

PRICE CODE

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CONTENTS

FOREWORD.....	3
INTRODUCTION.....	5
1 Title.....	8
2 Object	8
3 Scope.....	8
4 Governing documents.....	8
5 Membership.....	9
6 Organization.....	10
7 Ex Management Committee.....	10
8 Officers, Executive and administration.....	13
9 Committees reporting to the ExMC	15
9.1 Conformity Assessment Bodies Committee (ExTAG).....	15
9.2 IECEX Conformity Mark Committee (ExMarkCo).....	17
9.3 IECEX Personnel Certification Committee (ExPCC).....	18
9.4 IECEX Certified Service Facilities Scheme Committee (ExSFC)	19
10 Legal provisions	20
10.1 International level	20
10.2 National level.....	20
10.3 Legal protection.....	20
10.4 Exclusion of liability	21
10.5 Exoneration	21
11 Standards.....	21
12 Voting.....	21
13 Finance	22
14 Dissolution of the IECEX System	23
Annex A (normative) Procedure for the Board of Appeal	24
Annex B (normative) Approved scope of the IECEX System	26
Annex C (normative) Normative documents approved for use in the IECEX System	27
Annex D (normative) Conditions for bodies and organizations domiciled in non-IEC member countries to become members of an IEC Conformity Assessment System	28

INTERNATIONAL ELECTROTECHNICAL COMMISSION

IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) –

Basic Rules

FOREWORD

This publication has been prepared by the IECEX Management Committee (ExMC) and approved by the IEC Conformity Assessment Board (CAB).

This edition 7.0 of IECEX 01 incorporates an amendment and supersedes edition 6.1 published in 2013. This edition 7.0 takes effect immediately upon publication.

This publication is directly related to:

- IECEX 02, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) – IECEX Certified Equipment Scheme covering equipment for use in explosive atmospheres – Rules of Procedure*
- IECEX 03, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) – IECEX Certified Service Facilities Scheme covering repair and overhaul of Ex equipment – Rules of Procedure*
- IECEX 03-2, *IECEX Certified Service Facilities Scheme – Part 2: Selection of Ex equipment and design of Ex installations – Rules of Procedure*
- IECEX 03-3, *IECEX Certified Service Facilities Scheme – Part 3: Ex installation and initial inspection – Rules of Procedure*
- IECEX 03-4, *IECEX Certified Service Facilities Scheme – Part 4: Ex inspection and maintenance – Rules of Procedure*
- IECEX 03-5, *IECEX Certified Service Facilities Scheme – Part 5: Repair, overhaul and reclamation of Ex equipment – Rules of Procedure*
- IECEX 04, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX Scheme) – IECEX Conformity Mark Licensing System – Regulations*
- IECEX 05, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) – IECEX Scheme for Certification of Personnel Competencies for Explosive Atmospheres – Rules of Procedure*

The annexes to this publication are normative.

The text of this publication is based on the following documents:

Document	Report on Voting
ExMC/692/CD	ExMC/723A/RM
CAB/1008/DV	Approved at the 2011 CAB Meeting in Melbourne
ExMC/890/CD	ExMC/902/RM
CAB/1192/INF	Approved at the 2013 CAB Meeting in New Delhi
ExMC/1030/CD	Approved at the Christchurch 2015 ExMC Meeting

The significant changes with respect to the previous edition 6.1 are listed below:

- Addition of text to Subclause 9.2.1
- Insertion of new Subclause 9.2.11 as requested in ExMarkCo 2014 Meeting Report, to align with provisions for both ExTAG and ExPCC
- Insertion of new Subclause 9.4 regarding IECEX Certified Service Facility Scheme Committee

Withdrawn

INTRODUCTION

IECEX System objective

The objective of the IECEX System is to facilitate international trade in equipment and services for use in explosive atmospheres, while maintaining the required level of safety:

- Reduced testing and certification costs to manufacturer
- Reduced time to market
- International confidence in the product assessment process
- One international database listing
- Maintaining international confidence in equipment and services covered by IECEX Certification

What is an Ex area?

Ex areas can be known by different names such as “hazardous locations”, “hazardous areas”, “explosive atmospheres”, and the like and relate to areas where flammable liquids, vapours, gases or combustible dusts are likely to occur in quantities sufficient to cause a fire or explosion.

The modern day automation of industry has meant an increased need to use equipment in Ex areas. Such equipment is termed “Ex equipment”.

Where do you commonly find Ex equipment?

Flammable gases, vapours and mists, as well as combustible dusts create potentially explosive atmospheres. Ex equipment in such areas include:

- Automotive refuelling stations or petrol stations
- Oil refineries, rigs and processing plants
- Oil and gas tankers, drilling ships and FPSO (Floating Production Storage Offloading vessels)
- Chemical processing plants
- Printing industries, paper and textiles
- Hospital operating theatres
- Aircraft refuelling and hangars
- Surface coating industries
- Underground coal mines
- Sewerage treatment plants
- Gas pipelines and distribution centres
- Grain handling and storage and processing (flour-milling industry)
- Woodworking areas
- Sugar refineries
- Light metal working, where metal dust and fine particles can appear

IECEX International Certification System

In addition to the preparation of International Standards, the IEC facilitates the operation of Conformity Assessment Systems. One such System is the IECEX System.

The IECEX System comprises the following Global Certification Schemes:

- The IECEX Certified Equipment Scheme
- The IECEX Certified Service Facilities Scheme
- The IECEX Certificate of Personnel Competence Scheme
- The IECEX Conformity Mark Licensing System

The IECEX Certified Equipment Scheme

The IECEX Certified Equipment Scheme is an International Certification Scheme covering product that meets the requirements of International Standards, e.g. IEC International Standards prepared by IEC TC 31: Equipment for explosive atmospheres.

The IECEX Certified Equipment Scheme provides both:

- a) a single International Certificate of Conformity that requires manufacturers to successfully complete:
 - testing and assessment of samples for compliance with Standards;
 - assessment and auditing of manufacturers premises;
 - on-going surveillance audits of manufacturers premises;

or

- b) a “fast-track” process for countries where regulations still require the issuing of national Ex Certificates or approval. This is achieved by way of global acceptance of IECEX equipment Test and Assessment Reports.

Certificates issued by the IECEX Certified Equipment Scheme are issued as “Electronic Certificates” and are live on the IECEX website. This enables full public access for viewing and printing. Visit the [IECEX On-Line Certificate System](http://www.iecex.com) at www.iecex.com.

The IECEX Certified Service Facilities Scheme

The IECEX Certified Service Facilities Scheme is an International Certification Scheme that covers the assessment and the on-site audit of organizations that provide a repair and overhaul service to the Ex industry.

Due to the very high capital investment made by industry in most Ex equipment it is much more economical to repair and overhaul equipment rather than to replace it with new. This also has obvious environmental benefits.

The challenge for industry is to ensure that all the very unique Ex safety features included in the design and manufacturing of Ex equipment are not compromised during the repair process.

Ex Repair and Overhaul Facilities and Workshops, certified under the IECEX Certified Service Facilities Scheme, provide industry with the assurance that repairs and overhaul to Ex equipment will be undertaken according to the strict requirements of the IECEX Scheme to the International Standard IEC 60079-19. Like the IECEX Certified Equipment Scheme, only “Electronic Certificates” are issued via the IECEX On-Line Certificate System thereby giving industry full access to both the viewing and printing of certificates.

The IECEx Certificate of Personnel Competence Scheme

The IECEx Certificate of Personnel Competence Scheme, or IECEx CoPC Scheme, is an International Certification Scheme that enables a common approach for the assessment of persons for their ability to apply the relevant Ex Standards used within the IECEx System, in accordance with International Standard ISO/IEC 17024.

The IECEx Certificate of Personnel Competence Scheme provides the international Ex industries with a qualification system that is transportable across borders.

Applications

Ex equipment manufacturers and Ex service providers and persons can apply to IECEx Certification Bodies (termed **ExCBs**), in any country.

Countries and certification bodies can apply to become members of the IECEx System with certification bodies able to issue IECEx Certificates once accepted according to the application procedures.

Rules of the IECEx System including Rules of Procedure are available, free of charge, from the **IECEX website**: www.iecex.com.

National Member Bodies of the IECEx System make application for their country to participate in the IECEx System on a standard-by-standard basis. The application is made to the Executive Secretary of the IECEx System.

Certification bodies and testing laboratories wishing to be accepted into the IECEx System must reside in a participating country. Their application for acceptance is made through their National Member Body of the IECEx System for the country in which they reside.

Certification bodies and testing laboratories are accepted into the IECEx System after satisfactory assessment of their competence. Assessors are selected who will provide confidence to regulatory authorities, users, manufacturers and certification bodies. International Standards ISO/IEC 17024 and ISO/IEC 17025, ISO/IEC Guide 65 and IECEx Technical Guidance Documents are used as part of the IECEx assessment process.

More information

Further information is available from the IECEx website: www.iecex.com, (containing free copies of the IECEx Rules of Procedure), from any of the IECEx Certification Bodies or directly from the IECEx Secretariat via the coordinates shown on the IECEx website.

IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) –

Basic Rules

1 Title

The title of the System is:

"IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres", hereinafter referred to as "the IECEX System".

2 Object

Taking into account the object of the International Electrotechnical Commission (IEC) as given in Article 2 of the IEC Statutes, the particular object of the IECEX System, operated under the authority of the IEC in conformity with the Statutes, is to provide a global framework for independent assessment and certification of equipment and services associated with explosive atmospheres.

3 Scope

The IECEX System includes assessment and certification of equipment and services covered by IEC International Standards for explosive atmospheres as are proposed by its Ex Management Committee (ExMC) and approved by the IEC Conformity Assessment Board (CAB). The IECEX System also provides for the assessment and certification of competence of persons working in or conducting work affecting explosive atmospheres. In the context of the IECEX System, International Standards include IEC Publications issued by IEC TC 31 and its Subcommittees.

Schemes approved to operate under the IECEX System are listed in Annex B.

4 Governing documents

The documents which state the Rules of the IECEX System and which govern the organization of its work are as follows:

- a) the Statutes of the IEC;
- b) the Rules of Procedure of the IEC;
- c) the ISO/IEC Directives, unless otherwise specified in the Rules of Procedure of the IECEX System;
- d) the Basic Rules which define the principles of the IECEX System and which are approved by the CAB; and
- e) the Rules of Procedure which define the working procedures of the IECEX System. The Rules of Procedure are decided upon and amended by the ExMC, in accordance with the voting procedure described in Clause 12. The Rules of Procedure of the IECEX System and amendments to them shall be notified to the CAB.

In case of a conflict, contradiction or inconsistency between the provisions of one of the above mentioned documents and provisions of another of the above mentioned documents, the provisions of the document listed in a higher position shall take precedence over the provisions of the document listed in a lower position.

5 Membership

5.1 Any country in which there is a Full or Associate Member National Committee of the IEC, as defined in Article 4 of the Statutes of the IEC, may apply for membership of the IECEX System.

Membership of the IECEX System is also open to non-IEC countries subject to the concurrence of the IEC Executive Committee (ExCo) regarding general IEC policy and satisfaction of the specific requirements for membership, as set out in Annex D.

The Member Body of the IECEX System shall be fully representative of the national conformity assessment community in Ex equipment and should include a wide representation from industry, regulatory authorities and standards bodies as well as conformity assessment interests. It shall be responsible for the receiving, consideration and endorsement of applications from bodies seeking acceptance as an IECEX Test Laboratory or IECEX Certification Body when submitting such to the IECEX Secretariat, in accordance with the Rules of Procedure. The Member Body may be either

- a) the National Committee of the IEC; or
- b) a body notified to the IEC by the National Committee of the IEC.

5.2 The IECEX System Member Bodies nominated by Full or Associate Member National Committees of the IEC or from non-IEC member countries are entitled to participate fully in the committees and activity of the IECEX System, except that representatives of IEC Associate Members and of non-IEC member countries are not eligible to any officer position.

Suspended IEC National Committees, or bodies notified by them for IECEX System membership, shall not be permitted to retain membership of the IECEX System or be admitted to membership in the IECEX System during the period of suspension. National Certification Bodies and Testing Laboratories associated with such suspended IEC members or the nominated IECEX System member shall not be permitted to participate in the activities of the IECEX System.

5.3 Application for membership of the IECEX System shall be submitted to the IECEX Executive Secretary by the National Committee of the IEC. The candidate member body shall undertake to abide by the Basic Rules and Rules of Procedure of the IECEX System. Applications for IECEX System membership from non-IEC member countries will be handled in accordance with the procedure set out in Annex D.

5.4 There shall be only one Member Body of the IECEX System in a particular country.

5.5 A Member Body wishing to withdraw from membership of the IECEX System shall give at least one calendar year's notice. This Member Body shall pay its annual dues for the calendar year during which the notice was given.

5.6 Any proposal to suspend membership of the IECEX System, or to cancel such suspension, shall require agreement by a majority of at least four-fifths of the total number of IECEX System Member Bodies, except in the case of suspension for non-payment of dues, or any other fees as decided by the ExMC.

If the suspension of the membership has not been cancelled during the year after which the decision was taken, the body concerned ceases to be a member of the IECEX System.

5.7 Appeals on matters of membership are dealt with by the CAB.

6 Organization

6.1 The organization comprises:

- a) an IECEx Management Committee (ExMC);
- b) an Ex Testing and Assessment Group (ExTAG);
- c) an IECEx Conformity Mark Committee (ExMarkCo);
- d) an IECEx Personnel Certification Committee (ExPCC);
- e) an ExSFC;
- f) a Board of Appeal; and
- g) a Secretariat.

6.2 The overall responsibility for the operation of the IECEx System is vested in the ExMC, which is a Committee of the IEC and operates under the authority of the CAB. The CAB has delegated the management and overall operational responsibility related to the IECEx to the ExMC. The CAB supervises the ExMC and has the authority to disband the ExMC and/or the IECEx (IEC Statutes, Article 13). This authority shall not be exercised without prior consultation between the CAB and the ExMC.

7 Ex Management Committee

7.1 The composition of the ExMC is as follows:

- a) a delegation of up to three persons from each Member Body. The delegation shall take account of all interests in the conformity assessment process at national level, including those of regulatory authorities, Ex equipment users, manufacturers, service providers and conformity assessment bodies;
- b) the Chairman (with casting vote only);
- c) the Vice-Chairman (without vote);
- d) the Treasurer (without vote);
- e) the Executive Secretary (without vote);
- f) the Chairman of the ExTAG (without vote);
- g) the Chairman of the ExMarkCo (without vote);
- h) the Chairman of ExSFC (without vote);
- i) the Chairman of the ExPCC (without vote);
- j) the Chairman of IEC TC 31: Equipment for explosive atmospheres (without vote); and
- k) the General Secretary of the IEC (without vote).

7.2 Meetings of the ExMC shall be held at least annually. Additional meetings of the ExMC may be convened either if decided upon by the Chairman of the ExMC or if requested in writing to the IECEx Executive Secretary by at least four Members.

Notice of the meetings shall be circulated by the Executive Secretary at least six weeks prior to the meeting. The agenda and proposal documents shall be circulated at least one month prior to the meeting.

In preparing the agenda, the Executive Secretary shall, as far as possible, list all the documents related to the various items for discussion.

The ExMC may refuse to consider matters set before it if the relevant documents have not been circulated in accordance with the above.

Each Member of the ExMC shall name one person as Chief Delegate.

The CAB Chairman is entitled to attend ExMC meetings without a right to vote.

Observers may attend meetings of the ExMC with permission of the Chairman. The observers shall have no right to vote, and their right to speak shall be determined by the Chairman.

The General Secretary of the IEC or his representative may attend all meetings within the IECEX System, *ex officio*, without vote.

Minutes of the meetings of the ExMC shall be circulated by the Executive Secretary to all Members of the IECEX System within one month of the meeting.

7.3 The ExMC provides a report on its activities at least annually to the CAB and submits proposals for approval by the CAB with regard to:

- a) modifications to the Basic Rules of the IECEX System;
- b) the appointment of officers of the ExMC;
- c) the appointment of the Chairman and members of the Board of Appeal of the IECEX System;
- d) the budget and annual financial accounts of the IECEX System;
- e) business plans of the IECEX System;
- f) proposals for extensions to the Scope of the IECEX System; and
- g) proposals for the use of normative documents other than IEC International Standards.

7.4 The ExMC shall decide on:

- a) questions related to membership of the IECEX System;
- b) dues to be paid by Member Bodies;
- c) proposed budget and financial accounts of the IECEX System for approval by the CAB;
- d) surcharges and the conditions under which they may be levied;
- e) approval of the Rules of Procedure for the operation of the IECEX System;
- f) other questions regarding the Rules of Procedure mentioned in e) above;
- g) types of protection or services for the IECEX System for subsequent approval by the CAB;
- h) acceptance of Member Bodies of the IECEX System;
- i) acceptance, rejection and suspension of ExCBs and of ExTLs;
- j) acceptance, rejection and suspension of ExCBs as IECEX Conformity Mark License issuing ExCBs, in accordance with IECEX 04;
- k) appointment of the Chairman and the Secretary of the ExTAG;
- l) appointment of the Chairman of the ExMarkCo;
- m) appointment of the Chairman and Deputy Chairman of the ExPCC;
- n) appointment of the Chairman and Deputy Chairman of the ExSFC;
- o) appointment of assessors for the acceptance of ExCBs and ExTLs. To build market confidence and mutual confidence between ExCBs and ExTLs, assessors shall include experts drawn from the manufacturer, user and regulatory authority interests as well as from ExCBs and ExTLs;
- p) assessors' fees; and
- q) the layout and content of IECEX Certificates of Conformity (CoCs) and IECEX Test Reports (ExTRs).

7.5 The ExMC shall, moreover, have the following duties:

- a) to manage the IECEX System in accordance with the Basic Rules and Rules of Procedure of the IECEX System;
- b) to monitor the continuing compliance of ExCBs and ExTLs with the Rules of the System;
- c) to monitor acceptance of IECEX Certificates of Conformity in participating countries;
- d) to promote the IECEX System;
- e) to submit an annual report on its activities to the CAB; and
- f) to carry out any other tasks relevant to the object of the IECEX System, given to it by the CAB.

7.6 The IECEX System shall incorporate a Board of Appeal whose responsibilities are:

- a) to recommend a solution to any dispute referred to it with regard to the application of these Rules; and
- b) to report to the ExMC, for appropriate action, any observations relating to the technical content of standards accepted for use in the IECEX System and their application, that have become evident when investigating a dispute.

The Board of Appeal shall consist of a Chairman and four members, with deputies, two of whom shall be from ExCBs. They shall be appointed by the CAB, upon nomination by the ExMC. Their terms of office shall be three years, and they shall be immediately eligible once for re-appointment for a further period of three years.

The IECEX Executive Secretary shall act as the Secretary of the Board of Appeal and shall have no right to vote.

For considering a case submitted to the Board of Appeal, the Chairman and all four members or their deputies shall be present. A case may be dealt with by correspondence, with the agreement of the parties involved.

Neither the Chairman of the Board of Appeal nor the four members or deputies shall serve in a case in which an ExCB or an ExTL of their country is involved. When necessary in such an event, a person from a country not involved in the case shall be appointed by the Chairman of the CAB upon nomination by the Chairman of the ExMC.

The parties interested shall have the right to be heard by the Board of Appeal.

Decisions of the Board of Appeal about its recommendations shall be taken by a simple majority of the four members. If the votes are equally divided, the Chairman shall decide upon the action to be taken.

If a recommendation from the Board of Appeal is not followed, either party may submit the case to the CAB for appropriate action.

The Rules of Procedure for the Board of Appeal are given in Annex A.

7.7 Decisions by the ExMC concerning Member Bodies of the IECEX System may be appealed to the CAB.

7.8 The ExMC may establish Working Groups with clearly defined terms of reference, to advise it on matters related to the management of the IECEX System or to enhance the efficiency of its operation.

NOTE Working Groups may be established for the purpose of dealing with matters relating to, for example:

- the layout and content of assessment report forms for the initial assessment of ExCBs and ExTLs;
- the evaluation of assessment and reassessment reports for ExCBs and ExTLs, including recommendations for acceptance, rejection or suspension; and
- the layout and content of IECEX Certificates of Conformity, and the layout of Ex Test Reports.

7.9 The Secretariat duties of any Working Group shall be under the responsibility of the IECEX Executive Secretary.

7.10 There may be instances where matters of confidentiality associated with recommendations for decisions to be taken according to 7.4 i) need to be addressed. In such cases, the circulation of documents may be restricted to the nominated representatives of Member Bodies of the IECEX System by the Chairman. When such matters are dealt with at a meeting, the Chairman may restrict the right for persons other than the Chief Delegates to be present. Notification of such action shall be provided in advance of the meeting, or at the discretion of the Chairman, such discussion can take place without notice. When necessary, these matters may be recorded in separate confidential minutes with restricted circulation.

8 Officers, Executive and administration

8.1 The CAB appointed Officers of the IECEX System are:

- a) the Chairman;
- b) the Vice-Chairman;
- c) the Treasurer; and
- d) the Secretary (IECEX Executive Secretary).

8.2 The Executive of the IECEX System comprise:

- a) the CAB appointed Officers of the System;
- b) the Chairman of the ExTAG;
- c) the Secretary of the ExTAG;
- d) the Chairman of the ExMarkCo;
- e) the Chairman of the ExPCC;
- f) the Deputy Chairman of the ExPCC;
- g) the Chairman of the ExSFC;
- h) the Deputy Chairman of the ExSFC; and
- i) the Immediate Past IECEX Chairman.

8.3 The Chairman is appointed for a period of three years by the CAB, on the nomination of the ExMC. He is eligible for re-appointment in the same office for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may by specific resolution, outlining the circumstances, propose to the CAB that the incumbent Chairman be appointed to a further term of three years in that position.

The Chairman shall not, upon appointment, act as a national delegate to the ExMC. The Chairman is empowered to establish an advisory group, basically consisting of the persons holding the offices listed under 7.1 c) to g).

The Chairman shall be responsible to the CAB and shall ensure that the affairs concerning the IECEX System are conducted in accordance with these Rules.

The principal duties of the Chairman are to:

- a) convene meetings of the ExMC;
- b) preside over the meetings of the ExMC;
- c) decide upon the agendas for the meetings of the ExMC; and
- d) act on behalf of the ExMC between its meetings.

The Chairman may attend all meetings within the IECEX System, *ex officio*, without vote in this capacity.

In the event of the Chairman's being unable to fulfil his duties, the Vice-Chairman shall deputize for him.

8.4 The Vice-Chairman is appointed for a period of three years by the CAB, on the nomination of the ExMC. He is eligible for re-appointment in the same office for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may by specific resolution, outlining the circumstances, propose to the CAB that the incumbent Vice-Chairman be appointed to a further term of three years in that position.

The Vice-Chairman may at the same time be a national delegate to the ExMC, except when he takes the chair at a meeting.

In the absence of the Chairman, the Vice-Chairman shall act in his place.

8.5 The Treasurer is appointed for a period of three years by the CAB, on the nomination of the ExMC. He is eligible for re-appointment in the same office for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may by specific resolution, outlining the circumstances, propose to the CAB that the incumbent Treasurer be appointed to a further term of three years in that position.

The Treasurer may at the same time be a national delegate to the ExMC.

The principal duties of the Treasurer are to:

- a) guide the Executive Secretary in financial matters related to the IECEX System;
- b) establish and present to the ExMC the budget on the basis of the information supplied by the Executive Secretary;
- c) present, with his observations, the audited annual financial reports of the IECEX System to the ExMC;
- d) supervise the finances of the IECEX System; and
- e) arrange for the invoicing of the Member Bodies.

8.6 The Secretariat may be located at the office of a Member Body or at the Central Office of the IEC or elsewhere. The ExMC in consultation with the IEC General Secretary shall decide on the degree of administrative support provided by the Central Office.

8.7 The Executive Secretary is entrusted with the chief executive officer functions in relation to the IECEX System.

The routine work of the Executive Secretary is to:

- a) provide general administrative and secretarial services for the IECEX System and the secretarial services to the ExMC;
- b) handle the daily financial matters of the Secretariat of the IECEX System;
- c) circulate to the Member Bodies the accounts of the IECEX System;
- d) accept or reject applications from candidate ExCBs or ExTLs in accordance with the Rules of Procedure of the IECEX System as approved by the ExMC;
- e) organize initial assessment and reassessment of ExCBs and of ExTLs, including the appointment of assessors;
- f) handle requests for extension of acceptance to further standards for types of protection, for ExCBs and for ExTLs;
- g) keep up to date records regarding the ExCBs and ExTLs;
- h) periodically circulate questionnaires requesting information about the standards to which ExTRs are recognized or issued and about national differences;
- i) be responsible for editing and arranging the publication of the IECEX publications;
- j) be responsible for maintaining a list of assessors approved by the ExMC and for managing the assessment activities;
- k) provide administrative support to the ExTAG;
- l) provide administrative support to the ExPCC;
- m) provide administrative support to the ExSFC; and
- n) provide administrative support to the ExMarkCo.

8.8 The Executive Secretary is appointed for a period of five years by the CAB, on nomination by the ExMC and is eligible for re-appointment without restriction. The Executive Secretary is an employee of or a contractor to the IEC and a decision to appoint the Executive Secretary requires the prior consent of the IEC General Secretary. The IECEX Chairman shall consult with the CAB Chairman and the IEC General Secretary before a proposal is made to the ExMC for the nomination of an Executive Secretary.

The Executive Secretary shall act independently of any Member of the IECEX System and shall not act as a national delegate to the ExMC. The Executive Secretary shall be present at all meetings of the ExMC, but has no right to vote.

8.9 The Chairman, the Vice-Chairman, the Treasurer and the Executive Secretary of the IECEX System shall take office on the first day of January of the year after the meeting of the CAB at which they have been appointed unless otherwise determined by the CAB.

8.10 The Officers and Executive of the IECEX System are empowered to make decisions between ExMC meetings, as delegated to them by the ExMC. They shall, in addition, carry out any other task(s) assigned to them by the ExMC. With the Chairman's agreement, Members of the Executive may attend all meetings associated with the IECEX System.

Any decision on matters delegated to the Officers or Executive shall be reported to the ExMC and recorded in the minutes.

9 Committees reporting to the ExMC

9.1 Conformity Assessment Bodies Committee (ExTAG)

9.1.1 The Conformity Assessment Bodies Committee referred to as the Ex Testing and Assessment Group (ExTAG) deals with matters of a technical nature concerning the application of the IEC International Standards to the assessment and testing of Ex equipment and matters relating to the assessment and surveillance of a manufacturer's or service

provider's quality system. The principle role of ExTAG is to facilitate common application of testing, assessment and auditing requirements in the issue and maintenance of an IECEX Certificate of Conformity.

9.1.2 All ExCBs and ExTLs shall be members of the ExTAG. Where an organization is both an ExCB and an ExTL, it shall have only a single membership.

The Chairman and/or Secretaries of IEC TC 31 and subcommittees shall be *ex officio* members of the ExTAG, in order to facilitate the solution of problems relating to the application of the IEC International Standards.

9.1.3 The duties of the ExTAG are:

- a) to harmonize the application of the requirements of standards;
- b) to detail the way in which the tests specified in the standards have to be carried out so as to achieve the necessary reproducibility of test results;
- c) to harmonize the design and use of the test equipment referred to in the standards and to make recommendations to the relevant IEC technical committee or subcommittee for improvement of those standards; and
- d) to provide ExCBs and ExTLs with a forum in which practical testing and assessment problems can be demonstrated and discussed.

9.1.4 The ExTAG shall meet at least once a year and preferably in a different country each year, ideally at a place where an ExCB or ExTL is situated.

9.1.5 Participants in meetings of the ExTAG shall be appointed by the members and shall be experts from ExCBs or ExTLs and, if appropriate, other experts. The names of the participants shall be communicated to the Secretary of ExTAG in due time before each meeting. The number of participants from each member simultaneously present at a meeting shall not exceed three. The participants may, however, change during a particular meeting according to the subject to be discussed.

9.1.6 Decisions of the ExTAG shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred as appropriate to the ExMC or to the relevant IEC technical committee or subcommittee.

9.1.7 If the ExTAG decides that it is essential to revise a test specification of a standard, a proposal detailing the changes shall be submitted to the relevant IEC technical committee or subcommittee.

9.1.8 As soon as possible after a meeting, the Secretary of the ExTAG shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals being submitted to IEC technical committees and subcommittees; and
- c) proposals submitted to ExMC for discussion.

9.1.9 Minutes of meetings of the ExTAG shall be sent by its Secretary to the members of the ExTAG and to the Executive Secretary of the IECEX System for circulation to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.1.10 The Chairman and Secretary of the ExTAG shall be appointed by the ExMC upon nomination by the ExTAG.

9.1.11 The term of office of the Chairman of the ExTAG shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExTAG Chairman for a further 3 year term. The term of office of the Secretary of ExTAG shall be five years and shall be renewable without restriction.

9.2 IECEx Conformity Mark Committee (ExMarkCo)

9.2.1 The IECEx Conformity Mark Committee (ExMarkCo) deals with matters relating to the operation of the IECEx Conformity Mark Licensing System by ExCBs including use, or misuse of the IECEx Conformity Mark by IECEx Licensees or other parties. The ExMarkCo also covers all matters related to the IECEx Logo as detailed in IECEx Publications including IECEx 04 and Guides IECEx 01B and IECEx 04A.

9.2.2 Membership of the ExMarkCo shall be determined by the ExMC and shall comprise adequate representation from the Conformity Assessment Bodies, manufacturers, end-users and regulators.

9.2.3 The Chairman of the ExMarkCo shall be as appointed by ExMC.

9.2.4 The IECEx Executive Secretary shall act as the Secretary of the ExMarkCo.

9.2.5 The duties of the ExMarkCo are to provide a consultative forum to the ExMC on matters relating to:

- a) the development, maintenance, and implementation of the Rules and Operational Procedures of the IECEx Mark Conformity Licensing System in accordance with Regulations IECEx 04;
- b) making recommendations concerning the suitability of Certification Bodies to be accepted as Operators in the IECEx Conformity Mark Licensing System and authorized to license the use of the Mark; and
- c) ensuring that the IECEx Rules of Procedure of the IECEx Conformity Mark Licensing System conform to these Regulations.

9.2.6 The ExMarkCo shall report to the ExMC who, in turn, shall report to CAB on a regular basis, concerning the operation of the IECEx Conformity Mark Licensing System.

9.2.7 The ExMarkCo shall meet as directed by the ExMC, generally on a yearly basis, and preferably at the same time as the ExMC annual meetings. The names of the participants shall be communicated to the Secretary of the ExMarkCo in due time before each meeting.

9.2.8 Decisions of the ExMarkCo shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred to the ExMC for a decision.

9.2.9 As soon as possible after a meeting, the Secretary of the ExMarkCo shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals to be submitted for discussion.

9.2.10 Reports of meetings of the ExMarkCo shall be circulated to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.2.11 The Chairman of the ExMarkCo shall be appointed by the ExMC upon nomination by the ExMarkCo.

9.2.12 The term of office of the Chairman shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExMarkCo Chairman for a further 3 year term.

9.3 IECEx Personnel Certification Committee (ExPCC)

9.3.1 The IECEx Personnel Certification Committee (ExPCC) deals with matters relating to the operation of the IECEx Certificate of Personnel Competence Scheme (IECEX CoPC Scheme) as defined by the Scheme Rules, IECEx 05.

9.3.2 Membership of the ExPCC shall be determined by the ExMC and shall comprise adequate representation from the Conformity Assessment Bodies, manufacturers, end-users, training bodies, service providers and regulators.

9.3.3 The Chairman of the ExPCC shall be as appointed by ExMC.

9.3.4 The IECEx Executive Secretary shall act as the Secretary of the ExPCC.

9.3.5 The duties of the ExPCC are to provide a consultative forum to the ExMC on matters relating to:

- a) the development, maintenance, and implementation of the Rules and Operational Procedures of the IECEx CoPC Scheme;
- b) ensuring a common approach to the application of IECEx CoPC Scheme Rules and Operational Documents; and
- c) promotion of the IECEx CoPC Scheme.

9.3.6 The ExPCC shall report to the ExMC who, in turn, shall report to CAB on a regular basis, concerning the operation of the IECEx CoPC Scheme.

9.3.7 The ExPCC shall meet as directed by the ExMC, generally on a yearly basis.

9.3.8 Decisions of the ExPCC shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred to the ExMC for a decision.

9.3.9 As soon as possible after a meeting, the Secretary of the ExPCC shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals to be submitted for discussion.

9.3.10 Reports of meetings of the ExPCC shall be circulated to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.3.11 The term of office of the Chairman of the ExPCC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExPCC Chairman for a further 3 year term.

9.3.12 The Deputy Chairman of the ExPCC shall be as appointed by ExMC.

9.3.13 The term of office of the Deputy Chairman of the ExPCC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExPCC Deputy Chairman for a further 3 year term.

9.3.14 The role of the Deputy Chairman of the ExPCC is to support the Chairman of the ExPCC and he shall act as Chairman of the ExPCC when the Chairman is unavailable.

9.4 IECEx Certified Service Facilities Scheme Committee (ExSFC)

9.4.1 The IECEx Service Facilities Scheme Committee referred to as ExSFC deals with matters of a technical nature concerning the application of the IEC International Standards to the IECEx 03 Certified Service Facilities Scheme. The principle role of ExSFC is to facilitate common application of testing, assessment and auditing requirements in the issue and maintenance of an IECEx Certificate of Conformity under the IECEx 03 Scheme.

9.4.2 All ExCBs and applicant ExCBs shall be members of the ExSFC.

The Chairman and/or Secretaries of IEC TC 31 and subcommittees shall be *ex officio* members of the ExSFC, in order to facilitate the solution of problems relating to the application of the IEC International Standards.

9.4.3 The duties of the ExSFC are:

- a) to harmonize the application of the requirements of standards;
- b) to detail the way in which assessments for compliance to standards have to be carried out so as to achieve the necessary consistency;
- c) to make recommendations to the relevant IEC technical committee or subcommittee for improvement of those standards;
- d) to provide ExCBs with a forum in which practical assessment problems can be demonstrated and discussed; and
- e) promote the IECEx 03 Scheme.

9.4.4 The ExSFC shall meet at least once a year and preferably in a different country each year, ideally at a place where an ExCB is situated.

9.4.5 Participants in meetings of the ExSFC shall be appointed by the members and shall be experts from ExCBs and stakeholders of the IECEx 03 Scheme. The ExMC shall approve the membership structure and membership categories. The names of the participants shall be communicated to the Secretary of the ExSFC in due time before each meeting. The number of participants from each member simultaneously present at a meeting shall not exceed three. The participants may, however, change during a particular meeting according to the subject to be discussed.

9.4.6 Decisions of the ExSFC shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred as appropriate to the ExMC or to the relevant IEC technical committee or subcommittee.

9.4.7 If the ExSFC decides that it is essential to revise a standard, a proposal detailing the changes shall be submitted to the relevant IEC technical committee or subcommittee.

9.4.8 The ExSFC may establish Subcommittees and Working Groups as required.

9.4.9 As soon as possible after a meeting, the Secretary of the ExSFC shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals being submitted to IEC technical committees and subcommittees; and
- c) proposals submitted to ExMC for discussion.

9.4.10 Minutes of meetings of the ExSFC shall be sent by the Secretary to the members of the ExSFC and to the Executive of the IECEX System for circulation to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.4.11 The Chairman of the ExSFC shall be appointed by the ExMC upon nomination by the ExSFC. The IECEX Executive Secretary shall act as the ExSFC Secretary.

9.4.12 The term of office of the Chairman of the ExSFC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExSFC Chairman for a further 3 year term.

9.4.13 The Deputy Chairman of the ExSFC shall be appointed by the ExMC.

9.4.14 The term of office of the Deputy Chairman of the ExSFC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExSFC Deputy Chairman for a further 3 year term.

9.4.15 The role of the Deputy Chairman of the ExSFC is to support the Chairman of the ExSFC and he shall act as Chairman of the ExSFC when the Chairman is unavailable.

10 Legal provisions

10.1 International level

10.1.1 The ExMC does not engage in trade, is non-profit making and does not take part in any other economic pursuit on its own behalf. It has no marketing function or price-regulating function. It expands its means only on achieving the object of Clause 2.

The decisions of the ExMC are made voluntarily on the basis of the prescribed voting procedures.

10.1.2 The seat of the IECEX System shall be the same as that of the IEC.

The laws of the country in which the IEC has its seat shall apply in any or all cases not specifically provided for in these Basic Rules.

10.2 National level

For the national organizations, the laws of the relevant countries shall apply.

Nothing found in these Basic Rules or in the Rules of Procedure of the IECEX System shall violate, or cause any acts which violate, the laws of a country in which the IECEX System operates. It is the responsibility of the Member Body in each participating country, in the establishment of the national rules implementing the IECEX System, to provide the necessary legal protection against the violation of any law.

10.3 Legal protection

The granting of certification of conformity shall not transfer to the ExMC or to the IEC any of the legal responsibilities incumbent, under the national or international law, on the manufacturer or on the supplier of the product or service so certified.

10.4 Exclusion of liability

The national organizations acting on behalf of the ExMC shall do so on their own responsibility and shall take all possible steps to exclude any liability from falling on the ExMC or on the IEC.

10.5 Exoneration

In the case that the ExMC or the IEC is held legally responsible, under national or international law, for any action taken by a national organization acting on behalf of the ExMC, then the national organization involved shall undertake to exonerate fully the ExMC and the IEC from such liabilities.

11 Standards

The IECEX System is based on the use of specific IEC International Standards for types of protection of Ex equipment and services, accepted by the ExMC for use in the IECEX System. Specific CAB approval is required should the ExMC propose to make use of normative documents, other than IEC or ISO International Standards.

The list of normative documents approved for use in the IECEX System is included in Annex C.

If the ExMC wishes to include in the IECEX System types of protection for which there is no IEC International Standard, it shall request the relevant IEC technical committee or subcommittee to prepare as quickly as possible the required standard. If there is no committee dealing with the subject, the ExMC shall, through the CAB, request the Standardization Management Board (SMB) of the IEC to initiate the preparation of the required standard.

12 Voting

12.1 Each Member Body has one vote in the committees in which it participates.

12.2 The presence of half the number of the Member Bodies shall constitute a quorum. Unless other provisions are made, decisions in meetings shall be taken by a simple majority of votes of the Member Bodies present and voting. Voting by proxy is not permitted.

Abstention is not considered as voting. The Chairman shall normally not vote, but if the votes are equally divided the Chairman shall decide on the action to be taken.

Decisions are normally taken during meetings. Between meetings, if the Chairman so decides, voting takes place by correspondence.

Unless other provisions are made, decisions on matters voted upon by correspondence shall be taken by a simple majority of votes of those Member Bodies voting. Abstention is not considered as voting. A vote by correspondence is terminated when all Member Bodies have voted or two months after the date of circulation of the voting document, whichever results in a shorter period except that in the case of voting on the approval of the annual financial accounts and the annual budgets a shorter voting period will be determined by the Chairman to meet IEC requirements. If the votes are equally divided, the Chairman shall decide on the action to be taken.

When determining the total number of Member Bodies, bodies whose membership has been suspended shall not be taken into consideration.

12.3 Proposed amendments to the Basic Rules shall be communicated in writing to the Member Bodies at least three months prior to the meeting of the ExMC at which the proposed amendments are to be considered.

Such amendments are approved if two-thirds of the Member Bodies present are in favour. If approved by the ExMC, the proposed amendments shall be submitted to the CAB for approval. The amendments are applicable immediately following approval by the CAB. The CAB may amend the Basic Rules on its own initiative, however before taking any such action the CAB shall consult with the ExMC.

12.4 Decisions affecting the Rules of Procedure and Operational Documents of the IECEX System shall be taken by the ExMC. Proposed amendments to the Rules of Procedure and Operational Documents shall be communicated in writing to the Member Bodies, at least three months prior to the meeting of the ExMC at which the proposed amendments are to be considered.

Such amendments are approved if two-thirds of the Member Bodies present are in favour. If this condition is not fulfilled, the ExMC may decide to submit the proposed amendments for approval by the Member Bodies by correspondence. The amendments are approved if a two-thirds majority of the votes cast by the members are in favour. Abstentions are excluded when the votes are counted. Approved changes to the Rules of Procedure and Operational Documents are to be notified to the CAB meeting next following the ExMC approval.

13 Finance

13.1 The IECEX System shall be self-financing.

13.2 The financial year of the IECEX System shall be the calendar year.

13.3 The IECEX System shall derive its income from annual dues paid by its Member Bodies and from other sources as approved by the ExMC.

13.4 Each year, not later than the end of March, the Executive Secretary shall send to the Member Bodies the accounts of the IECEX System for the preceding year, duly ratified by a professional auditor and signed by the Treasurer of the IECEX System.

The ExMC shall consider and endorse the audited accounts at a Management Committee meeting. The endorsed accounts shall be forwarded to the CAB Secretary not later than the deadline prescribed from time to time by the CAB.

13.5 The draft annual budget for the following year will be forwarded to Member Bodies in sufficient time to ensure approval by correspondence not later than the end of the third week of March. The approved annual budget of the IECEX System shall be forwarded to the CAB Secretary not later than the deadline prescribed from time to time by the CAB.

The ExMC shall establish the system of allocating the dues within the IECEX System.

The dues shall be paid in the first six months of each calendar year.

The ExMC shall also decide on surcharges and the conditions under which they may be levied.

13.6 Any Member Body whose dues for a given calendar year have not been paid by 31 December of that year may have its membership suspended by decision of the ExMC.

During such a suspension, the Member Body has no right to send a delegation to the ExMC, or to receive documents or publications of the IECEx System, or to exercise its vote or to participate in the IECEx System. ExCBs and ExTLs associated with such suspended IECEx Member Bodies shall not be permitted to participate in the activities of the IECEx System.

13.7 Suspension of membership for a non-payment of dues shall be immediately cancelled when the Member Body has fully paid its past and current dues.

14 Dissolution of the IECEx System

Any proposal for dissolution of the IECEx System, if supported by more than one-half of the total number of ExMC Member Bodies, shall be submitted to the CAB for approval and any necessary action. The CAB shall determine the disposal of remaining property and funds after the settlement of all liabilities.

Withdrawal

Annex A (normative)

Procedure for the Board of Appeal

A.1 An applicant, an ExCB, an ExTL or a Member Body of the IECEX System shall have the right to submit an appeal to the Board of Appeal.

A.2 When an applicant wishes to appeal against a decision taken by an ExCB about a matter with which this applicant is concerned, the applicant shall first appeal according to the appeal procedure of the ExCB concerned, when that procedure is applicable.

If the applicant is not satisfied with the outcome of the appeal at national level and the applicant thinks that the decision is against the Rules or if the national appeal procedure is not applicable, the applicant may submit an appeal in writing to the Secretary of the ExMC within one month after having been informed of the decision, setting out all reasons for the appeal.

A.3 When an ExCB, an ExTL or a Member Body wishes to submit an appeal, it shall do so in writing to the Secretary of the ExMC within one month after having concluded that it cannot come to an agreement, setting out its reasons in full.

A.4 In order to consider a case, the Board of Appeal shall normally meet in conjunction with a meeting of the ExMC. The Board of Appeal may however meet at any time provided the complainant expresses willingness to pay the travelling and living expenses for the Chairman, the four members and the Secretary of the Board of Appeal for this meeting. These expenses shall be notified in advance to the complainant and shall have been paid to the account of the IECEX System before the meeting can take place.

A.5 When the Board of Appeal meets to consider a case, the following information shall be available:

- a) the appeal;
- b) the text of all correspondence between the parties and with the Secretary of the ExMC that is essential for the appeal;
- c) extract from the relevant reports on testing;
- d) photographs of the equipment or a specimen of it; and
- e) drawings, circuit diagrams, instruction handbooks, and so on, as necessary.

Normally, these documents shall be circulated at least four weeks before a meeting by the Secretary of the ExMC to the Chairman and the four members of the Board of Appeal, and their deputies when they will serve on the case. Copies of all documents shall also be sent to the parties.

A.6 When the parties have agreed that the matter may be dealt with by correspondence, Clause A.5 also applies. The complainant shall have expressed its willingness to pay the costs, if any.

The Chairman of the Board of Appeal may then propose a solution for consideration by the members of the Board of Appeal. It is the duty of the Secretary of the ExMC to assist the members and the parties.

When the decision is taken by correspondence, notes or minutes relevant to the decision shall be written.

A.7 The Board of Appeal shall deal with the case confidentially.

A.8 The parties involved each have the right to call an expert to advise on matters relevant to the case.

A.9 During the adjudication of the case, only the Chairman, the four members or their deputies and the Secretary of the Board of Appeal shall be present.

A.10 The Board of Appeal shall give its recommendations in writing, within one month after the meeting, to the parties, and, if action with regard to standards is needed, to the General Secretary of the IEC.

A.11 The recommendations of the Board of Appeal shall be presented to the ExMC at its next meeting in such a way as not to reveal the identity of the parties, when that is desired. When an ExCB has not followed a recommendation of the Board of Appeal, the ExMC shall decide on appropriate steps to be taken.

Withdrawn

Annex B (normative)

Approved scope of the IECEx System

The following Schemes are included in the Scope of the IECEx System approved by the IEC Conformity Assessment Board (CAB):

- The IECEx Certified Equipment Scheme
- The IECEx Certified Service Facilities Scheme
- The IECEx Certificate of Personnel Competence Scheme
- The IECEx Conformity Mark Licensing System

Withdrawn

Annex C (normative)

Normative documents approved for use in the IECEx System

The following normative documents have been approved by the IEC Conformity Assessment Board (CAB) for use within the IECEx System for testing and certification purposes:

- IEC International Standards covering equipment and services within the approved scope of the System (CAB Decision 21/7)
- In cases where no relevant IEC International Standards exist, ISO Standards applicable to the approved Schemes listed in Annex B (CAB Decision 24/17)

Withdrawn

Annex D

(normative)

Conditions for bodies and organizations domiciled in non-IEC member countries to become members of an IEC Conformity Assessment System

0 Foreword

Bodies and organizations domiciled in non-IEC member countries making application for acceptance into an IEC Conformity Assessment System shall fully satisfy all the conditions specified below.

1 Conditions to be satisfied

1.1 Use of IEC International Standards to grant “national marks”

Within the country test and assessment work carried out under the IEC CA System will be recognized as the basis for national certification or approval by any existing or future national certification body(ies) proposed for participation in the System or will be accepted directly by the country's product approval authorities.

1.2 Well-established body recognized at national level by the authorities and the market

Applicant member bodies from non-IEC member countries must demonstrate the existence of (a) body(ies) operating a national certification or approval scheme recognized by the authorities and the market . If no such body(ies) exist, applicants must provide details of regulatory or other arrangements providing for direct acceptance of conformity assessment results.

1.3 IEC membership

Applicants should undertake to apply for at least associate membership of the IEC within a maximum of three years after admission to a System. If not already an Affiliate the applicant must be prepared to participate in the IEC Affiliate Country Program until such time as the applicant becomes a member of the IEC.

Countries suspended from the IEC may not be admitted to the IEC CA Systems for a period of three (3) years following their suspension.

1.4 ExCo decision on acceptability

The IEC General Secretary shall be informed by the System Secretariat of all applications (or possible applications, where known by the System Secretariat) from non-IEC member countries, in order that the IEC ExCo may take a decision in principle as to their acceptability in terms of general IEC policy and any specific requirements with respect to IEC membership, after receiving the IEC General Secretary's view on this. The ExCo decision shall be conveyed to the System.

1.5 Compliance with System membership requirements

Applicants and associated certification bodies and testing laboratories must undertake to comply with all relevant System rules and requirements, including payment of annual dues and sharing of costs as defined in the System rules and varied by the System management committee.

2 Participation rights

The applicant member body and associated certification bodies and testing laboratories have the same rights of participation in the activities of the System as are exercised by those System members, who are also members of the IEC, except that representatives of non-IEC member countries are not eligible for election to any officer position.

3 Application procedure

3.1 Member body

An application for member body shall be made according to the Basic Rules and Rules of Procedure of the System and must include an undertaking to full commitment by its proposed certification body(ies), or relevant regulatory authorities, to recognize test and assessment work carried out by any member of the System for the purpose of granting the “National Mark” or other means of national recognition (ref. Clause 1.1).

The applicant organization shall provide the following information:

- a) reasons for the application for membership;
- b) the timetable for joining the System;
- c) a description of the structure or proposed structure in the country related to member body, certification body(ies) and testing laboratory(ies) as well as the responsibility for standards;
- d) existence of mandatory and/or voluntary certification schemes;
- e) existence of national differences from IEC International Standards and of conflicting national standards or regulatory requirements, if any (where applicable); and
- f) plans for participation in IEC standardization work.

3.2 Processing of applications

The complete member body application, fulfilling all of the requirements specified herein and the relevant requirements of the System Basic Rules and Rules of Procedure, shall be submitted to the System Secretariat for evaluation and processing according to the Basic Rules, the Rules of Procedure and any relevant Operational Documents.

Prior to finalizing an application the System Executive Secretary shall ensure that advice has been obtained from the IEC General Secretary on the ExCo's decision with respect to acceptability in terms of general IEC policy and any specific requirements with respect to IEC membership (refer to 1.3 and 1.4).

The final decision of the System management committee will be notified to the applicant member body and to the IEC Conformity Assessment Board (CAB).

CONTENTS

FOREWORD.....	3
INTRODUCTION.....	5
1 Title.....	8
2 Object	8
3 Scope.....	8
4 Governing documents.....	8
5 Membership.....	9
6 Organization.....	10
7 Ex Management Committee.....	10
8 Officers, Executive and administration.....	13
9 Committees reporting to the ExMC	15
9.1 Conformity Assessment Bodies Committee (ExTAG).....	15
9.2 IECEX Conformity Mark Committee (ExMarkCo).....	17
9.3 IECEX Personnel Certification Committee (ExPCC).....	18
9.4 IECEX Certified Service Facilities Scheme Committee (ExSFC)	19
10 Legal provisions	20
10.1 International level	20
10.2 National level.....	20
10.3 Legal protection.....	20
10.4 Exclusion of liability	21
10.5 Exoneration.....	21
11 Standards.....	21
12 Voting.....	21
13 Finance	22
14 Dissolution of the IECEX System	23
Annex A (normative) Procedure for the Board of Appeal	24
Annex B (normative) Approved scope of the IECEX System	26
Annex C (normative) Normative documents approved for use in the IECEX System	27
Annex D (normative) Conditions for bodies and organizations domiciled in non-IEC member countries to become members of an IEC Conformity Assessment System	28

INTERNATIONAL ELECTROTECHNICAL COMMISSION

IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) –

Basic Rules

FOREWORD

This publication has been prepared by the IECEX Management Committee (ExMC) and approved by the IEC Conformity Assessment Board (CAB).

This edition 7.0 of IECEX 01 incorporates an amendment and supersedes edition 6.1 published in 2013. This edition 7.0 takes effect immediately upon publication.

This publication is directly related to:

- IECEX 02, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) – IECEX Certified Equipment Scheme covering equipment for use in explosive atmospheres – Rules of Procedure*
- IECEX 03, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) – IECEX Certified Service Facilities Scheme covering repair and overhaul of Ex equipment – Rules of Procedure*
- IECEX 03-2, *IECEX Certified Service Facilities Scheme – Part 2: Selection of Ex equipment and design of Ex installations – Rules of Procedure*
- IECEX 03-3, *IECEX Certified Service Facilities Scheme – Part 3: Ex installation and initial inspection – Rules of Procedure*
- IECEX 03-4, *IECEX Certified Service Facilities Scheme – Part 4: Ex inspection and maintenance – Rules of Procedure*
- IECEX 03-5, *IECEX Certified Service Facilities Scheme – Part 5: Repair, overhaul and reclamation of Ex equipment – Rules of Procedure*
- IECEX 04, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX Scheme) – IECEX Conformity Mark Licensing System – Regulations*
- IECEX 05, *IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) – IECEX Scheme for Certification of Personnel Competencies for Explosive Atmospheres – Rules of Procedure*

The annexes to this publication are normative.

The text of this publication is based on the following documents:

Document	Report on Voting
ExMC/692/CD	ExMC/723A/RM
CAB/1008/DV	Approved at the 2011 CAB Meeting in Melbourne
ExMC/890/CD	ExMC/902/RM
CAB/1192/INF	Approved at the 2013 CAB Meeting in New Delhi
ExMC/1030/CD	Approved at the Christchurch 2015 ExMC Meeting

The significant changes with respect to the previous edition 6.1 are listed below:

- Addition of text to Subclause 9.2.1
- Insertion of new Subclause 9.2.11 as requested in ExMarkCo 2014 Meeting Report, to align with provisions for both ExTAG and ExPCC
- Insertion of new Subclause 9.4 regarding IECEX Certified Service Facility Scheme Committee

Withdrawn

INTRODUCTION

IECEX System objective

The objective of the IECEX System is to facilitate international trade in equipment and services for use in explosive atmospheres, while maintaining the required level of safety:

- Reduced testing and certification costs to manufacturer
- Reduced time to market
- International confidence in the product assessment process
- One international database listing
- Maintaining international confidence in equipment and services covered by IECEX Certification

What is an Ex area?

Ex areas can be known by different names such as “hazardous locations”, “hazardous areas”, “explosive atmospheres”, and the like and relate to areas where flammable liquids, vapours, gases or combustible dusts are likely to occur in quantities sufficient to cause a fire or explosion.

The modern day automation of industry has meant an increased need to use equipment in Ex areas. Such equipment is termed “Ex equipment”.

Where do you commonly find Ex equipment?

Flammable gases, vapours and mists, as well as combustible dusts create potentially explosive atmospheres. Ex equipment in such areas include:

- Automotive refuelling stations or petrol stations
- Oil refineries, rigs and processing plants
- Oil and gas tankers, drilling ships and FPSO (Floating Production Storage Offloading vessels)
- Chemical processing plants
- Printing industries, paper and textiles
- Hospital operating theatres
- Aircraft refuelling and hangars
- Surface coating industries
- Underground coal mines
- Sewerage treatment plants
- Gas pipelines and distribution centres
- Grain handling and storage and processing (flour-milling industry)
- Woodworking areas
- Sugar refineries
- Light metal working, where metal dust and fine particles can appear

IECEX International Certification System

In addition to the preparation of International Standards, the IEC facilitates the operation of Conformity Assessment Systems. One such System is the IECEx System.

The IECEx System comprises the following Global Certification Schemes:

- The IECEx Certified Equipment Scheme
- The IECEx Certified Service Facilities Scheme
- The IECEx Certificate of Personnel Competence Scheme
- The IECEx Conformity Mark Licensing System

The IECEx Certified Equipment Scheme

The IECEx Certified Equipment Scheme is an International Certification Scheme covering product that meets the requirements of International Standards, e.g. IEC International Standards prepared by IEC TC 31: Equipment for explosive atmospheres.

The IECEx Certified Equipment Scheme provides both:

- a) a single International Certificate of Conformity that requires manufacturers to successfully complete:
 - testing and assessment of samples for compliance with Standards;
 - assessment and auditing of manufacturers premises;
 - on-going surveillance audits of manufacturers premises;
- or
- b) a “fast-track” process for countries where regulations still require the issuing of national Ex Certificates or approval. This is achieved by way of global acceptance of IECEx equipment Test and Assessment Reports.

Certificates issued by the IECEx Certified Equipment Scheme are issued as “Electronic Certificates” and are live on the IECEx website. This enables full public access for viewing and printing. Visit the [IECEX On-Line Certificate System](http://www.iecex.com) at www.iecex.com.

The IECEx Certified Service Facilities Scheme

The IECEx Certified Service Facilities Scheme is an International Certification Scheme that covers the assessment and the on-site audit of organizations that provide a repair and overhaul service to the Ex industry.

Due to the very high capital investment made by industry in most Ex equipment it is much more economical to repair and overhaul equipment rather than to replace it with new. This also has obvious environmental benefits.

The challenge for industry is to ensure that all the very unique Ex safety features included in the design and manufacturing of Ex equipment are not compromised during the repair process.

Ex Repair and Overhaul Facilities and Workshops, certified under the IECEx Certified Service Facilities Scheme, provide industry with the assurance that repairs and overhaul to Ex equipment will be undertaken according to the strict requirements of the IECEx Scheme to the International Standard IEC 60079-19. Like the IECEx Certified Equipment Scheme, only “Electronic Certificates” are issued via the IECEx On-Line Certificate System thereby giving industry full access to both the viewing and printing of certificates.

The IECEx Certificate of Personnel Competence Scheme

The IECEx Certificate of Personnel Competence Scheme, or IECEx CoPC Scheme, is an International Certification Scheme that enables a common approach for the assessment of persons for their ability to apply the relevant Ex Standards used within the IECEx System, in accordance with International Standard ISO/IEC 17024.

The IECEx Certificate of Personnel Competence Scheme provides the international Ex industries with a qualification system that is transportable across borders.

Applications

Ex equipment manufacturers and Ex service providers and persons can apply to IECEx Certification Bodies (termed **ExCBs**), in any country.

Countries and certification bodies can apply to become members of the IECEx System with certification bodies able to issue IECEx Certificates once accepted according to the application procedures.

Rules of the IECEx System including Rules of Procedure are available, free of charge, from the **IECEX website**: www.iecex.com.

National Member Bodies of the IECEx System make application for their country to participate in the IECEx System on a standard-by-standard basis. The application is made to the Executive Secretary of the IECEx System.

Certification bodies and testing laboratories wishing to be accepted into the IECEx System must reside in a participating country. Their application for acceptance is made through their National Member Body of the IECEx System for the country in which they reside.

Certification bodies and testing laboratories are accepted into the IECEx System after satisfactory assessment of their competence. Assessors are selected who will provide confidence to regulatory authorities, users, manufacturers and certification bodies. International Standards ISO/IEC 17024 and ISO/IEC 17025, ISO/IEC Guide 65 and IECEx Technical Guidance Documents are used as part of the IECEx assessment process.

More information

Further information is available from the IECEx website: www.iecex.com, (containing free copies of the IECEx Rules of Procedure), from any of the IECEx Certification Bodies or directly from the IECEx Secretariat via the coordinates shown on the IECEx website.

IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres (IECEX System) –

Basic Rules

1 Title

The title of the System is:

"IEC System for Certification to Standards Relating to Equipment for Use in Explosive Atmospheres", hereinafter referred to as "the IECEX System".

2 Object

Taking into account the object of the International Electrotechnical Commission (IEC) as given in Article 2 of the IEC Statutes, the particular object of the IECEX System, operated under the authority of the IEC in conformity with the Statutes, is to provide a global framework for independent assessment and certification of equipment and services associated with explosive atmospheres.

3 Scope

The IECEX System includes assessment and certification of equipment and services covered by IEC International Standards for explosive atmospheres as are proposed by its Ex Management Committee (ExMC) and approved by the IEC Conformity Assessment Board (CAB). The IECEX System also provides for the assessment and certification of competence of persons working in or conducting work affecting explosive atmospheres. **In the context of the IECEX System, International Standards include IEC Publications issued by IEC TC 31 and its Subcommittees.**

Schemes approved to operate under the IECEX System are listed in Annex B.

4 Governing documents

The documents which state the Rules of the IECEX System and which govern the organization of its work are as follows:

- a) the Statutes of the IEC;
- b) the Rules of Procedure of the IEC;
- c) the ISO/IEC Directives, unless otherwise specified in the Rules of Procedure of the IECEX System;
- d) the Basic Rules which define the principles of the IECEX System and which are approved by the CAB; and
- e) the Rules of Procedure which define the working procedures of the IECEX System. The Rules of Procedure are decided upon and amended by the ExMC, in accordance with the voting procedure described in Clause 12. The Rules of Procedure of the IECEX System and amendments to them shall be notified to the CAB.

In case of a conflict, contradiction or inconsistency between the provisions of one of the above mentioned documents and provisions of another of the above mentioned documents, the provisions of the document listed in a higher position shall take precedence over the provisions of the document listed in a lower position.

5 Membership

5.1 Any country in which there is a Full or Associate Member National Committee of the IEC, as defined in Article 4 of the Statutes of the IEC, may apply for membership of the IECEX System.

Membership of the IECEX System is also open to non-IEC countries subject to the concurrence of the IEC Executive Committee (ExCo) regarding general IEC policy and satisfaction of the specific requirements for membership, as set out in Annex D.

The Member Body of the IECEX System shall be fully representative of the national conformity assessment community in Ex equipment and should include a wide representation from industry, regulatory authorities and standards bodies as well as conformity assessment interests. It shall be responsible for the receiving, consideration and endorsement of applications from bodies seeking acceptance as an IECEX Test Laboratory or IECEX Certification Body when submitting such to the IECEX Secretariat, in accordance with the Rules of Procedure. The Member Body may be either

- a) the National Committee of the IEC; or
- b) a body notified to the IEC by the National Committee of the IEC.

5.2 The IECEX System Member Bodies nominated by Full or Associate Member National Committees of the IEC or from non-IEC member countries are entitled to participate fully in the committees and activity of the IECEX System, except that representatives of IEC Associate Members and of non-IEC member countries are not eligible to any officer position.

Suspended IEC National Committees, or bodies notified by them for IECEX System membership, shall not be permitted to retain membership of the IECEX System or be admitted to membership in the IECEX System during the period of suspension. National Certification Bodies and Testing Laboratories associated with such suspended IEC members or the nominated IECEX System member shall not be permitted to participate in the activities of the IECEX System.

5.3 Application for membership of the IECEX System shall be submitted to the IECEX Executive Secretary by the National Committee of the IEC. The candidate member body shall undertake to abide by the Basic Rules and Rules of Procedure of the IECEX System. Applications for IECEX System membership from non-IEC member countries will be handled in accordance with the procedure set out in Annex D.

5.4 There shall be only one Member Body of the IECEX System in a particular country.

5.5 A Member Body wishing to withdraw from membership of the IECEX System shall give at least one calendar year's notice. This Member Body shall pay its annual dues for the calendar year during which the notice was given.

5.6 Any proposal to suspend membership of the IECEX System, or to cancel such suspension, shall require agreement by a majority of at least four-fifths of the total number of IECEX System Member Bodies, except in the case of suspension for non-payment of dues, or any other fees as decided by the ExMC.

If the suspension of the membership has not been cancelled during the year after which the decision was taken, the body concerned ceases to be a member of the IECEX System.

5.7 Appeals on matters of membership are dealt with by the CAB.

6 Organization

6.1 The organization comprises:

- a) an IECEx Management Committee (ExMC);
- b) an Ex Testing and Assessment Group (ExTAG);
- c) an IECEx Conformity Mark Committee (ExMarkCo);
- d) an IECEx Personnel Certification Committee (ExPCC);
- e) an ExSFC;
- f) a Board of Appeal; and
- g) a Secretariat.

6.2 The overall responsibility for the operation of the IECEx System is vested in the ExMC, which is a Committee of the IEC and operates under the authority of the CAB. The CAB has delegated the management and overall operational responsibility related to the IECEx to the ExMC. The CAB supervises the ExMC and has the authority to disband the ExMC and/or the IECEx (IEC Statutes, Article 13). This authority shall not be exercised without prior consultation between the CAB and the ExMC.

7 Ex Management Committee

7.1 The composition of the ExMC is as follows:

- a) a delegation of up to three persons from each Member Body. The delegation shall take account of all interests in the conformity assessment process at national level, including those of regulatory authorities, Ex equipment users, manufacturers, service providers and conformity assessment bodies;
- b) the Chairman (with casting vote only);
- c) the Vice-Chairman (without vote);
- d) the Treasurer (without vote);
- e) the Executive Secretary (without vote);
- f) the Chairman of the ExTAG (without vote);
- g) the Chairman of the ExMarkCo (without vote);
- h) the Chairman of ExSFC (without vote);
- i) the Chairman of the ExPCC (without vote);
- j) the Chairman of IEC TC 31: Equipment for explosive atmospheres (without vote); and
- k) the General Secretary of the IEC (without vote).

7.2 Meetings of the ExMC shall be held at least annually. Additional meetings of the ExMC may be convened either if decided upon by the Chairman of the ExMC or if requested in writing to the IECEx Executive Secretary by at least four Members.

Notice of the meetings shall be circulated by the Executive Secretary at least six weeks prior to the meeting. The agenda and proposal documents shall be circulated at least one month prior to the meeting.

In preparing the agenda, the Executive Secretary shall, as far as possible, list all the documents related to the various items for discussion.

The ExMC may refuse to consider matters set before it if the relevant documents have not been circulated in accordance with the above.

Each Member of the ExMC shall name one person as Chief Delegate.

The CAB Chairman is entitled to attend ExMC meetings without a right to vote.

Observers may attend meetings of the ExMC with permission of the Chairman. The observers shall have no right to vote, and their right to speak shall be determined by the Chairman.

The General Secretary of the IEC or his representative may attend all meetings within the IECEX System, *ex officio*, without vote.

Minutes of the meetings of the ExMC shall be circulated by the Executive Secretary to all Members of the IECEX System within one month of the meeting.

7.3 The ExMC provides a report on its activities at least annually to the CAB and submits proposals for approval by the CAB with regard to:

- a) modifications to the Basic Rules of the IECEX System;
- b) the appointment of officers of the ExMC;
- c) the appointment of the Chairman and members of the Board of Appeal of the IECEX System;
- d) the budget and annual financial accounts of the IECEX System;
- e) business plans of the IECEX System;
- f) proposals for extensions to the Scope of the IECEX System; and
- g) proposals for the use of normative documents other than IEC International Standards.

7.4 The ExMC shall decide on:

- a) questions related to membership of the IECEX System;
- b) dues to be paid by Member Bodies;
- c) proposed budget and financial accounts of the IECEX System for approval by the CAB;
- d) surcharges and the conditions under which they may be levied;
- e) approval of the Rules of Procedure for the operation of the IECEX System;
- f) other questions regarding the Rules of Procedure mentioned in e) above;
- g) types of protection or services for the IECEX System for subsequent approval by the CAB;
- h) acceptance of Member Bodies of the IECEX System;
- i) acceptance, rejection and suspension of ExCBs and of ExTLs;
- j) acceptance, rejection and suspension of ExCBs as IECEX Conformity Mark License issuing ExCBs, in accordance with IECEX 04;
- k) appointment of the Chairman and the Secretary of the ExTAG;
- l) appointment of the Chairman of the ExMarkCo;
- m) appointment of the Chairman and Deputy Chairman of the ExPCC;
- n) appointment of the Chairman and Deputy Chairman of the ExSFC;**
- o) appointment of assessors for the acceptance of ExCBs and ExTLs. To build market confidence and mutual confidence between ExCBs and ExTLs, assessors shall include experts drawn from the manufacturer, user and regulatory authority interests as well as from ExCBs and ExTLs;
- p) assessors' fees; and
- q) the layout and content of IECEX Certificates of Conformity (CoCs) and IECEX Test Reports (ExTRs).

7.5 The ExMC shall, moreover, have the following duties:

- a) to manage the IECEX System in accordance with the Basic Rules and Rules of Procedure of the IECEX System;
- b) to monitor the continuing compliance of ExCBs and ExTLs with the Rules of the System;
- c) to monitor acceptance of IECEX Certificates of Conformity in participating countries;
- d) to promote the IECEX System;
- e) to submit an annual report on its activities to the CAB; and
- f) to carry out any other tasks relevant to the object of the IECEX System, given to it by the CAB.

7.6 The IECEX System shall incorporate a Board of Appeal whose responsibilities are:

- a) to recommend a solution to any dispute referred to it with regard to the application of these Rules; and
- b) to report to the ExMC, for appropriate action, any observations relating to the technical content of standards accepted for use in the IECEX System and their application, that have become evident when investigating a dispute.

The Board of Appeal shall consist of a Chairman and four members, with deputies, two of whom shall be from ExCBs. They shall be appointed by the CAB, upon nomination by the ExMC. Their terms of office shall be three years, and they shall be immediately eligible once for re-appointment for a further period of three years.

The IECEX Executive Secretary shall act as the Secretary of the Board of Appeal and shall have no right to vote.

For considering a case submitted to the Board of Appeal, the Chairman and all four members or their deputies shall be present. A case may be dealt with by correspondence, with the agreement of the parties involved.

Neither the Chairman of the Board of Appeal nor the four members or deputies shall serve in a case in which an ExCB or an ExTL of their country is involved. When necessary in such an event, a person from a country not involved in the case shall be appointed by the Chairman of the CAB upon nomination by the Chairman of the ExMC.

The parties interested shall have the right to be heard by the Board of Appeal.

Decisions of the Board of Appeal about its recommendations shall be taken by a simple majority of the four members. If the votes are equally divided, the Chairman shall decide upon the action to be taken.

If a recommendation from the Board of Appeal is not followed, either party may submit the case to the CAB for appropriate action.

The Rules of Procedure for the Board of Appeal are given in Annex A.

7.7 Decisions by the ExMC concerning Member Bodies of the IECEX System may be appealed to the CAB.

7.8 The ExMC may establish Working Groups with clearly defined terms of reference, to advise it on matters related to the management of the IECEX System or to enhance the efficiency of its operation.

NOTE Working Groups may be established for the purpose of dealing with matters relating to, for example:

- the layout and content of assessment report forms for the initial assessment of ExCBs and ExTLs;
- the evaluation of assessment and reassessment reports for ExCBs and ExTLs, including recommendations for acceptance, rejection or suspension; and
- the layout and content of IECEX Certificates of Conformity, and the layout of Ex Test Reports.

7.9 The Secretariat duties of any Working Group shall be under the responsibility of the IECEX Executive Secretary.

7.10 There may be instances where matters of confidentiality associated with recommendations for decisions to be taken according to 7.4 i) need to be addressed. In such cases, the circulation of documents may be restricted to the nominated representatives of Member Bodies of the IECEX System by the Chairman. When such matters are dealt with at a meeting, the Chairman may restrict the right for persons other than the Chief Delegates to be present. Notification of such action shall be provided in advance of the meeting, or at the discretion of the Chairman, such discussion can take place without notice. When necessary, these matters may be recorded in separate confidential minutes with restricted circulation.

8 Officers, Executive and administration

8.1 The CAB appointed Officers of the IECEX System are:

- a) the Chairman;
- b) the Vice-Chairman;
- c) the Treasurer; and
- d) the Secretary (IECEX Executive Secretary).

8.2 The Executive of the IECEX System comprise:

- a) the CAB appointed Officers of the System;
- b) the Chairman of the ExTAG;
- c) the Secretary of the ExTAG;
- d) the Chairman of the ExMarkCo;
- e) the Chairman of the ExPCC;
- f) the Deputy Chairman of the ExPCC;
- g) the Chairman of the ExSFC;
- h) the Deputy Chairman of the ExSFC; and
- i) the Immediate Past IECEX Chairman.

8.3 The Chairman is appointed for a period of three years by the CAB, on the nomination of the ExMC. He is eligible for re-appointment in the same office for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may by specific resolution, outlining the circumstances, propose to the CAB that the incumbent Chairman be appointed to a further term of three years in that position.

The Chairman shall not, upon appointment, act as a national delegate to the ExMC. The Chairman is empowered to establish an advisory group, basically consisting of the persons holding the offices listed under 7.1 c) to g).

The Chairman shall be responsible to the CAB and shall ensure that the affairs concerning the IECEX System are conducted in accordance with these Rules.

The principal duties of the Chairman are to:

- a) convene meetings of the ExMC;
- b) preside over the meetings of the ExMC;
- c) decide upon the agendas for the meetings of the ExMC; and
- d) act on behalf of the ExMC between its meetings.

The Chairman may attend all meetings within the IECEX System, *ex officio*, without vote in this capacity.

In the event of the Chairman's being unable to fulfil his duties, the Vice-Chairman shall deputize for him.

8.4 The Vice-Chairman is appointed for a period of three years by the CAB, on the nomination of the ExMC. He is eligible for re-appointment in the same office for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may by specific resolution, outlining the circumstances, propose to the CAB that the incumbent Vice-Chairman be appointed to a further term of three years in that position.

The Vice-Chairman may at the same time be a national delegate to the ExMC, except when he takes the chair at a meeting.

In the absence of the Chairman, the Vice-Chairman shall act in his place.

8.5 The Treasurer is appointed for a period of three years by the CAB, on the nomination of the ExMC. He is eligible for re-appointment in the same office for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may by specific resolution, outlining the circumstances, propose to the CAB that the incumbent Treasurer be appointed to a further term of three years in that position.

The Treasurer may at the same time be a national delegate to the ExMC.

The principal duties of the Treasurer are to:

- a) guide the Executive Secretary in financial matters related to the IECEX System;
- b) establish and present to the ExMC the budget on the basis of the information supplied by the Executive Secretary;
- c) present, with his observations, the audited annual financial reports of the IECEX System to the ExMC;
- d) supervise the finances of the IECEX System; and
- e) arrange for the invoicing of the Member Bodies.

8.6 The Secretariat may be located at the office of a Member Body or at the Central Office of the IEC or elsewhere. The ExMC in consultation with the IEC General Secretary shall decide on the degree of administrative support provided by the Central Office.

8.7 The Executive Secretary is entrusted with the chief executive officer functions in relation to the IECEX System.

The routine work of the Executive Secretary is to:

- a) provide general administrative and secretarial services for the IECEX System and the secretarial services to the ExMC;
- b) handle the daily financial matters of the Secretariat of the IECEX System;
- c) circulate to the Member Bodies the accounts of the IECEX System;
- d) accept or reject applications from candidate ExCBs or ExTLs in accordance with the Rules of Procedure of the IECEX System as approved by the ExMC;
- e) organize initial assessment and reassessment of ExCBs and of ExTLs, including the appointment of assessors;
- f) handle requests for extension of acceptance to further standards for types of protection, for ExCBs and for ExTLs;
- g) keep up to date records regarding the ExCBs and ExTLs;
- h) periodically circulate questionnaires requesting information about the standards to which ExTRs are recognized or issued and about national differences;
- i) be responsible for editing and arranging the publication of the IECEX publications;
- j) be responsible for maintaining a list of assessors approved by the ExMC and for managing the assessment activities;
- k) provide administrative support to the ExTAG;
- l) provide administrative support to the ExPCC;
- m) provide administrative support to the ExSFC; and
- n) provide administrative support to the ExMarkCo.

8.8 The Executive Secretary is appointed for a period of five years by the CAB, on nomination by the ExMC and is eligible for re-appointment without restriction. The Executive Secretary is an employee of or a contractor to the IEC and a decision to appoint the Executive Secretary requires the prior consent of the IEC General Secretary. The IECEX Chairman shall consult with the CAB Chairman and the IEC General Secretary before a proposal is made to the ExMC for the nomination of an Executive Secretary.

The Executive Secretary shall act independently of any Member of the IECEX System and shall not act as a national delegate to the ExMC. The Executive Secretary shall be present at all meetings of the ExMC, but has no right to vote.

8.9 The Chairman, the Vice-Chairman, the Treasurer and the Executive Secretary of the IECEX System shall take office on the first day of January of the year after the meeting of the CAB at which they have been appointed unless otherwise determined by the CAB.

8.10 The Officers and Executive of the IECEX System are empowered to make decisions between ExMC meetings, as delegated to them by the ExMC. They shall, in addition, carry out any other task(s) assigned to them by the ExMC. With the Chairman's agreement, Members of the Executive may attend all meetings associated with the IECEX System.

Any decision on matters delegated to the Officers or Executive shall be reported to the ExMC and recorded in the minutes.

9 Committees reporting to the ExMC

9.1 Conformity Assessment Bodies Committee (ExTAG)

9.1.1 The Conformity Assessment Bodies Committee referred to as the Ex Testing and Assessment Group (ExTAG) deals with matters of a technical nature concerning the application of the IEC International Standards to the assessment and testing of Ex equipment and matters relating to the assessment and surveillance of a manufacturer's or service

provider's quality system. The principle role of ExTAG is to facilitate common application of testing, assessment and auditing requirements in the issue and maintenance of an IECEX Certificate of Conformity.

9.1.2 All ExCBs and ExTLs shall be members of the ExTAG. Where an organization is both an ExCB and an ExTL, it shall have only a single membership.

The Chairman and/or Secretaries of IEC TC 31 and subcommittees shall be *ex officio* members of the ExTAG, in order to facilitate the solution of problems relating to the application of the IEC International Standards.

9.1.3 The duties of the ExTAG are:

- a) to harmonize the application of the requirements of standards;
- b) to detail the way in which the tests specified in the standards have to be carried out so as to achieve the necessary reproducibility of test results;
- c) to harmonize the design and use of the test equipment referred to in the standards and to make recommendations to the relevant IEC technical committee or subcommittee for improvement of those standards; and
- d) to provide ExCBs and ExTLs with a forum in which practical testing and assessment problems can be demonstrated and discussed.

9.1.4 The ExTAG shall meet at least once a year and preferably in a different country each year, ideally at a place where an ExCB or ExTL is situated.

9.1.5 Participants in meetings of the ExTAG shall be appointed by the members and shall be experts from ExCBs or ExTLs and, if appropriate, other experts. The names of the participants shall be communicated to the Secretary of ExTAG in due time before each meeting. The number of participants from each member simultaneously present at a meeting shall not exceed three. The participants may, however, change during a particular meeting according to the subject to be discussed.

9.1.6 Decisions of the ExTAG shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred as appropriate to the ExMC or to the relevant IEC technical committee or subcommittee.

9.1.7 If the ExTAG decides that it is essential to revise a test specification of a standard, a proposal detailing the changes shall be submitted to the relevant IEC technical committee or subcommittee.

9.1.8 As soon as possible after a meeting, the Secretary of the ExTAG shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals being submitted to IEC technical committees and subcommittees; and
- c) proposals submitted to ExMC for discussion.

9.1.9 Minutes of meetings of the ExTAG shall be sent by its Secretary to the members of the ExTAG and to the Executive Secretary of the IECEX System for circulation to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.1.10 The Chairman and Secretary of the ExTAG shall be appointed by the ExMC upon nomination by the ExTAG.

9.1.11 The term of office of the Chairman of the ExTAG shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExTAG Chairman for a further 3 year term. The term of office of the Secretary of ExTAG shall be five years and shall be renewable without restriction.

9.2 IECEx Conformity Mark Committee (ExMarkCo)

9.2.1 The IECEx Conformity Mark Committee (ExMarkCo) deals with matters relating to the operation of the IECEx Conformity Mark Licensing System by ExCBs including use, or misuse of the IECEx Conformity Mark by IECEx Licensees or other parties. **The ExMarkCo also covers all matters related to the IECEx Logo as detailed in IECEx Publications including IECEx 04 and Guides IECEx 01B and IECEx 04A.**

9.2.2 Membership of the ExMarkCo shall be determined by the ExMC and shall comprise adequate representation from the Conformity Assessment Bodies, manufacturers, end-users and regulators.

9.2.3 The Chairman of the ExMarkCo shall be as appointed by ExMC.

9.2.4 The IECEx Executive Secretary shall act as the Secretary of the ExMarkCo.

9.2.5 The duties of the ExMarkCo are to provide a consultative forum to the ExMC on matters relating to:

- a) the development, maintenance, and implementation of the Rules and Operational Procedures of the IECEx Mark Conformity Licensing System in accordance with Regulations IECEx 04;
- b) making recommendations concerning the suitability of Certification Bodies to be accepted as Operators in the IECEx Conformity Mark Licensing System and authorized to license the use of the Mark; and
- c) ensuring that the IECEx Rules of Procedure of the IECEx Conformity Mark Licensing System conform to these Regulations.

9.2.6 The ExMarkCo shall report to the ExMC who, in turn, shall report to CAB on a regular basis, concerning the operation of the IECEx Conformity Mark Licensing System.

9.2.7 The ExMarkCo shall meet as directed by the ExMC, generally on a yearly basis, and preferably at the same time as the ExMC annual meetings. The names of the participants shall be communicated to the Secretary of the ExMarkCo in due time before each meeting.

9.2.8 Decisions of the ExMarkCo shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred to the ExMC for a decision.

9.2.9 As soon as possible after a meeting, the Secretary of the ExMarkCo shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals to be submitted for discussion.

9.2.10 Reports of meetings of the ExMarkCo shall be circulated to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.2.11 **The Chairman of the ExMarkCo shall be appointed by the ExMC upon nomination by the ExMarkCo.**

9.2.12 The term of office of the Chairman shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExMarkCo Chairman for a further 3 year term.

9.3 IECEx Personnel Certification Committee (ExPCC)

9.3.1 The IECEx Personnel Certification Committee (ExPCC) deals with matters relating to the operation of the IECEx Certificate of Personnel Competence Scheme (IECEX CoPC Scheme) as defined by the Scheme Rules, IECEx 05.

9.3.2 Membership of the ExPCC shall be determined by the ExMC and shall comprise adequate representation from the Conformity Assessment Bodies, manufacturers, end-users, training bodies, service providers and regulators.

9.3.3 The Chairman of the ExPCC shall be as appointed by ExMC.

9.3.4 The IECEx Executive Secretary shall act as the Secretary of the ExPCC.

9.3.5 The duties of the ExPCC are to provide a consultative forum to the ExMC on matters relating to:

- a) the development, maintenance, and implementation of the Rules and Operational Procedures of the IECEx CoPC Scheme;
- b) ensuring a common approach to the application of IECEx CoPC Scheme Rules and Operational Documents; and
- c) promotion of the IECEx CoPC Scheme.

9.3.6 The ExPCC shall report to the ExMC who, in turn, shall report to CAB on a regular basis, concerning the operation of the IECEx CoPC Scheme.

9.3.7 The ExPCC shall meet as directed by the ExMC, generally on a yearly basis.

9.3.8 Decisions of the ExPCC shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred to the ExMC for a decision.

9.3.9 As soon as possible after a meeting, the Secretary of the ExPCC shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals to be submitted for discussion.

9.3.10 Reports of meetings of the ExPCC shall be circulated to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.3.11 The term of office of the Chairman of the ExPCC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExPCC Chairman for a further 3 year term.

9.3.12 The Deputy Chairman of the ExPCC shall be as appointed by ExMC.

9.3.13 The term of office of the Deputy Chairman of the ExPCC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExPCC Deputy Chairman for a further 3 year term.

9.3.14 The role of the Deputy Chairman of the ExPCC is to support the Chairman of the ExPCC and he shall act as Chairman of the ExPCC when the Chairman is unavailable.

9.4 IECEx Certified Service Facilities Scheme Committee (ExSFC)

9.4.1 The IECEx Service Facilities Scheme Committee referred to as ExSFC deals with matters of a technical nature concerning the application of the IEC International Standards to the IECEx 03 Certified Service Facilities Scheme. The principle role of ExSFC is to facilitate common application of testing, assessment and auditing requirements in the issue and maintenance of an IECEx Certificate of Conformity under the IECEx 03 Scheme.

9.4.2 All ExCBs and applicant ExCBs shall be members of the ExSFC.

The Chairman and/or Secretaries of IEC TC 31 and subcommittees shall be *ex officio* members of the ExSFC, in order to facilitate the solution of problems relating to the application of the IEC International Standards.

9.4.3 The duties of the ExSFC are:

- a) to harmonize the application of the requirements of standards;
- b) to detail the way in which assessments for compliance to standards have to be carried out so as to achieve the necessary consistency;
- c) to make recommendations to the relevant IEC technical committee or subcommittee for improvement of those standards;
- d) to provide ExCBs with a forum in which practical assessment problems can be demonstrated and discussed; and
- e) promote the IECEx 03 Scheme.

9.4.4 The ExSFC shall meet at least once a year and preferably in a different country each year, ideally at a place where an ExCB is situated.

9.4.5 Participants in meetings of the ExSFC shall be appointed by the members and shall be experts from ExCBs and stakeholders of the IECEx 03 Scheme. The ExMC shall approve the membership structure and membership categories. The names of the participants shall be communicated to the Secretary of the ExSFC in due time before each meeting. The number of participants from each member simultaneously present at a meeting shall not exceed three. The participants may, however, change during a particular meeting according to the subject to be discussed.

9.4.6 Decisions of the ExSFC shall be arrived at by consensus. Where consensus cannot be achieved, the matter shall be referred as appropriate to the ExMC or to the relevant IEC technical committee or subcommittee.

9.4.7 If the ExSFC decides that it is essential to revise a standard, a proposal detailing the changes shall be submitted to the relevant IEC technical committee or subcommittee.

9.4.8 The ExSFC may establish Subcommittees and Working Groups as required.

9.4.9 As soon as possible after a meeting, the Secretary of the ExSFC shall prepare and distribute a report for consideration by the ExMC, covering:

- a) the results of the meeting;
- b) proposals being submitted to IEC technical committees and subcommittees; and
- c) proposals submitted to ExMC for discussion.

9.4.10 Minutes of meetings of the ExSFC shall be sent by the Secretary to the members of the ExSFC and to the Executive of the IECEX System for circulation to all members of ExMC. They shall embody all conclusions of the relevant meeting, together with a brief account of the discussions.

9.4.11 The Chairman of the ExSFC shall be appointed by the ExMC upon nomination by the ExSFC. The IECEX Executive Secretary shall act as the ExSFC Secretary.

9.4.12 The term of office of the Chairman of the ExSFC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExSFC Chairman for a further 3 year term.

9.4.13 The Deputy Chairman of the ExSFC shall be appointed by the ExMC.

9.4.14 The term of office of the Deputy Chairman of the ExSFC shall be three years and he shall be eligible for re-appointment for one further period of three years. If at the conclusion of a second or subsequent term there are no new candidates nominated for election to the position, the ExMC may appoint the ExSFC Deputy Chairman for a further 3 year term.

9.4.15 The role of the Deputy Chairman of the ExSFC is to support the Chairman of the ExSFC and he shall act as Chairman of the ExSFC when the Chairman is unavailable.

10 Legal provisions

10.1 International level

10.1.1 The ExMC does not engage in trade, is non-profit making and does not take part in any other economic pursuit on its own behalf. It has no marketing function or price-regulating function. It expands its means only on achieving the object of Clause 2.

The decisions of the ExMC are made voluntarily on the basis of the prescribed voting procedures.

10.1.2 The seat of the IECEX System shall be the same as that of the IEC.

The laws of the country in which the IEC has its seat shall apply in any or all cases not specifically provided for in these Basic Rules.

10.2 National level

For the national organizations, the laws of the relevant countries shall apply.

Nothing found in these Basic Rules or in the Rules of Procedure of the IECEX System shall violate, or cause any acts which violate, the laws of a country in which the IECEX System operates. It is the responsibility of the Member Body in each participating country, in the establishment of the national rules implementing the IECEX System, to provide the necessary legal protection against the violation of any law.

10.3 Legal protection

The granting of certification of conformity shall not transfer to the ExMC or to the IEC any of the legal responsibilities incumbent, under the national or international law, on the manufacturer or on the supplier of the product or service so certified.

10.4 Exclusion of liability

The national organizations acting on behalf of the ExMC shall do so on their own responsibility and shall take all possible steps to exclude any liability from falling on the ExMC or on the IEC.

10.5 Exoneration

In the case that the ExMC or the IEC is held legally responsible, under national or international law, for any action taken by a national organization acting on behalf of the ExMC, then the national organization involved shall undertake to exonerate fully the ExMC and the IEC from such liabilities.

11 Standards

The IECEX System is based on the use of specific IEC International Standards for types of protection of Ex equipment and services, accepted by the ExMC for use in the IECEX System. Specific CAB approval is required should the ExMC propose to make use of normative documents, other than IEC or ISO International Standards.

The list of normative documents approved for use in the IECEX System is included in Annex C.

If the ExMC wishes to include in the IECEX System types of protection for which there is no IEC International Standard, it shall request the relevant IEC technical committee or subcommittee to prepare as quickly as possible the required standard. If there is no committee dealing with the subject, the ExMC shall, through the CAB, request the Standardization Management Board (SMB) of the IEC to initiate the preparation of the required standard.

12 Voting

12.1 Each Member Body has one vote in the committees in which it participates.

12.2 The presence of half the number of the Member Bodies shall constitute a quorum. Unless other provisions are made, decisions in meetings shall be taken by a simple majority of votes of the Member Bodies present and voting. Voting by proxy is not permitted.

Abstention is not considered as voting. The Chairman shall normally not vote, but if the votes are equally divided the Chairman shall decide on the action to be taken.

Decisions are normally taken during meetings. Between meetings, if the Chairman so decides, voting takes place by correspondence.

Unless other provisions are made, decisions on matters voted upon by correspondence shall be taken by a simple majority of votes of those Member Bodies voting. Abstention is not considered as voting. A vote by correspondence is terminated when all Member Bodies have voted or two months after the date of circulation of the voting document, whichever results in a shorter period except that in the case of voting on the approval of the annual financial accounts and the annual budgets a shorter voting period will be determined by the Chairman to meet IEC requirements. If the votes are equally divided, the Chairman shall decide on the action to be taken.

When determining the total number of Member Bodies, bodies whose membership has been suspended shall not be taken into consideration.

12.3 Proposed amendments to the Basic Rules shall be communicated in writing to the Member Bodies at least three months prior to the meeting of the ExMC at which the proposed amendments are to be considered.

Such amendments are approved if two-thirds of the Member Bodies present are in favour. If approved by the ExMC, the proposed amendments shall be submitted to the CAB for approval. The amendments are applicable immediately following approval by the CAB. The CAB may amend the Basic Rules on its own initiative, however before taking any such action the CAB shall consult with the ExMC.

12.4 Decisions affecting the Rules of Procedure and Operational Documents of the IECEx System shall be taken by the ExMC. Proposed amendments to the Rules of Procedure and Operational Documents shall be communicated in writing to the Member Bodies, at least three months prior to the meeting of the ExMC at which the proposed amendments are to be considered.

Such amendments are approved if two-thirds of the Member Bodies present are in favour. If this condition is not fulfilled, the ExMC may decide to submit the proposed amendments for approval by the Member Bodies by correspondence. The amendments are approved if a two-thirds majority of the votes cast by the members are in favour. Abstentions are excluded when the votes are counted. Approved changes to the Rules of Procedure and Operational Documents are to be notified to the CAB meeting next following the ExMC approval.

13 Finance

13.1 The IECEx System shall be self-financing.

13.2 The financial year of the IECEx System shall be the calendar year.

13.3 The IECEx System shall derive its income from annual dues paid by its Member Bodies and from other sources as approved by the ExMC.

13.4 Each year, not later than the end of March, the Executive Secretary shall send to the Member Bodies the accounts of the IECEx System for the preceding year, duly ratified by a professional auditor and signed by the Treasurer of the IECEx System.

The ExMC shall consider and endorse the audited accounts at a Management Committee meeting. The endorsed accounts shall be forwarded to the CAB Secretary not later than the deadline prescribed from time to time by the CAB.

13.5 The draft annual budget for the following year will be forwarded to Member Bodies in sufficient time to ensure approval by correspondence not later than the end of the third week of March. The approved annual budget of the IECEx System shall be forwarded to the CAB Secretary not later than the deadline prescribed from time to time by the CAB.

The ExMC shall establish the system of allocating the dues within the IECEx System.

The dues shall be paid in the first six months of each calendar year.

The ExMC shall also decide on surcharges and the conditions under which they may be levied.

13.6 Any Member Body whose dues for a given calendar year have not been paid by 31 December of that year may have its membership suspended by decision of the ExMC.

During such a suspension, the Member Body has no right to send a delegation to the ExMC, or to receive documents or publications of the IECEx System, or to exercise its vote or to participate in the IECEx System. ExCBs and ExTLs associated with such suspended IECEx Member Bodies shall not be permitted to participate in the activities of the IECEx System.

13.7 Suspension of membership for a non-payment of dues shall be immediately cancelled when the Member Body has fully paid its past and current dues.

14 Dissolution of the IECEx System

Any proposal for dissolution of the IECEx System, if supported by more than one-half of the total number of ExMC Member Bodies, shall be submitted to the CAB for approval and any necessary action. The CAB shall determine the disposal of remaining property and funds after the settlement of all liabilities.

Withdrawal

Annex A (normative)

Procedure for the Board of Appeal

A.1 An applicant, an ExCB, an ExTL or a Member Body of the IECEX System shall have the right to submit an appeal to the Board of Appeal.

A.2 When an applicant wishes to appeal against a decision taken by an ExCB about a matter with which this applicant is concerned, the applicant shall first appeal according to the appeal procedure of the ExCB concerned, when that procedure is applicable.

If the applicant is not satisfied with the outcome of the appeal at national level and the applicant thinks that the decision is against the Rules or if the national appeal procedure is not applicable, the applicant may submit an appeal in writing to the Secretary of the ExMC within one month after having been informed of the decision, setting out all reasons for the appeal.

A.3 When an ExCB, an ExTL or a Member Body wishes to submit an appeal, it shall do so in writing to the Secretary of the ExMC within one month after having concluded that it cannot come to an agreement, setting out its reasons in full.

A.4 In order to consider a case, the Board of Appeal shall normally meet in conjunction with a meeting of the ExMC. The Board of Appeal may however meet at any time provided the complainant expresses willingness to pay the travelling and living expenses for the Chairman, the four members and the Secretary of the Board of Appeal for this meeting. These expenses shall be notified in advance to the complainant and shall have been paid to the account of the IECEX System before the meeting can take place.

A.5 When the Board of Appeal meets to consider a case, the following information shall be available:

- a) the appeal;
- b) the text of all correspondence between the parties and with the Secretary of the ExMC that is essential for the appeal;
- c) extract from the relevant reports on testing;
- d) photographs of the equipment or a specimen of it; and
- e) drawings, circuit diagrams, instruction handbooks, and so on, as necessary.

Normally, these documents shall be circulated at least four weeks before a meeting by the Secretary of the ExMC to the Chairman and the four members of the Board of Appeal, and their deputies when they will serve on the case. Copies of all documents shall also be sent to the parties.

A.6 When the parties have agreed that the matter may be dealt with by correspondence, Clause A.5 also applies. The complainant shall have expressed its willingness to pay the costs, if any.

The Chairman of the Board of Appeal may then propose a solution for consideration by the members of the Board of Appeal. It is the duty of the Secretary of the ExMC to assist the members and the parties.

When the decision is taken by correspondence, notes or minutes relevant to the decision shall be written.

A.7 The Board of Appeal shall deal with the case confidentially.

A.8 The parties involved each have the right to call an expert to advise on matters relevant to the case.

A.9 During the adjudication of the case, only the Chairman, the four members or their deputies and the Secretary of the Board of Appeal shall be present.

A.10 The Board of Appeal shall give its recommendations in writing, within one month after the meeting, to the parties, and, if action with regard to standards is needed, to the General Secretary of the IEC.

A.11 The recommendations of the Board of Appeal shall be presented to the ExMC at its next meeting in such a way as not to reveal the identity of the parties, when that is desired. When an ExCB has not followed a recommendation of the Board of Appeal, the ExMC shall decide on appropriate steps to be taken.

Withdrawn

Annex B (normative)

Approved scope of the IECEx System

The following Schemes are included in the Scope of the IECEx System approved by the IEC Conformity Assessment Board (CAB):

- The IECEx Certified Equipment Scheme
- The IECEx Certified Service Facilities Scheme
- The IECEx Certificate of Personnel Competence Scheme
- The IECEx Conformity Mark Licensing System

Withdrawn

Annex C (normative)

Normative documents approved for use in the IECEx System

The following normative documents have been approved by the IEC Conformity Assessment Board (CAB) for use within the IECEx System for testing and certification purposes:

- IEC International Standards covering equipment and services within the approved scope of the System (CAB Decision 21/7)
- In cases where no relevant IEC International Standards exist, ISO Standards applicable to the approved Schemes listed in Annex B (CAB Decision 24/17)

Annex D (normative)

Conditions for bodies and organizations domiciled in non-IEC member countries to become members of an IEC Conformity Assessment System

0 Foreword

Bodies and organizations domiciled in non-IEC member countries making application for acceptance into an IEC Conformity Assessment System shall fully satisfy all the conditions specified below.

1 Conditions to be satisfied

1.1 Use of IEC International Standards to grant “national marks”

Within the country test and assessment work carried out under the IEC CA System will be recognized as the basis for national certification or approval by any existing or future national certification body(ies) proposed for participation in the System or will be accepted directly by the country's product approval authorities.

1.2 Well-established body recognized at national level by the authorities and the market

Applicant member bodies from non-IEC member countries must demonstrate the existence of (a) body(ies) operating a national certification or approval scheme recognized by the authorities and the market . If no such body(ies) exist, applicants must provide details of regulatory or other arrangements providing for direct acceptance of conformity assessment results.

1.3 IEC membership

Applicants should undertake to apply for at least associate membership of the IEC within a maximum of three years after admission to a System. If not already an Affiliate the applicant must be prepared to participate in the IEC Affiliate Country Program until such time as the applicant becomes a member of the IEC.

Countries suspended from the IEC may not be admitted to the IEC CA Systems for a period of three (3) years following their suspension.

1.4 ExCo decision on acceptability

The IEC General Secretary shall be informed by the System Secretariat of all applications (or possible applications, where known by the System Secretariat) from non-IEC member countries, in order that the IEC ExCo may take a decision in principle as to their acceptability in terms of general IEC policy and any specific requirements with respect to IEC membership, after receiving the IEC General Secretary's view on this. The ExCo decision shall be conveyed to the System.

1.5 Compliance with System membership requirements

Applicants and associated certification bodies and testing laboratories must undertake to comply with all relevant System rules and requirements, including payment of annual dues and sharing of costs as defined in the System rules and varied by the System management committee.

2 Participation rights

The applicant member body and associated certification bodies and testing laboratories have the same rights of participation in the activities of the System as are exercised by those System members, who are also members of the IEC, except that representatives of non-IEC member countries are not eligible for election to any officer position.

3 Application procedure

3.1 Member body

An application for member body shall be made according to the Basic Rules and Rules of Procedure of the System and must include an undertaking to full commitment by its proposed certification body(ies), or relevant regulatory authorities, to recognize test and assessment work carried out by any member of the System for the purpose of granting the “National Mark” or other means of national recognition (ref. Clause 1.1).

The applicant organization shall provide the following information:

- a) reasons for the application for membership;
- b) the timetable for joining the System;
- c) a description of the structure or proposed structure in the country related to member body, certification body(ies) and testing laboratory(ies) as well as the responsibility for standards;
- d) existence of mandatory and/or voluntary certification schemes;
- e) existence of national differences from IEC International Standards and of conflicting national standards or regulatory requirements, if any (where applicable); and
- f) plans for participation in IEC standardization work.

3.2 Processing of applications

The complete member body application, fulfilling all of the requirements specified herein and the relevant requirements of the System Basic Rules and Rules of Procedure, shall be submitted to the System Secretariat for evaluation and processing according to the Basic Rules, the Rules of Procedure and any relevant Operational Documents.

Prior to finalizing an application the System Executive Secretary shall ensure that advice has been obtained from the IEC General Secretary on the ExCo's decision with respect to acceptability in terms of general IEC policy and any specific requirements with respect to IEC membership (refer to 1.3 and 1.4).

The final decision of the System management committee will be notified to the applicant member body and to the IEC Conformity Assessment Board (CAB).

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